

1. My initial opinion is drawn from Section 230 of the Communication Decency Act where social media companies are not penalized for speeches users make on their platform. Given that this involves financial transactions however, the issue is more aligned with consumer protection than freedom of commerce. I think the current system is inadequate around short-term rental units in San Francisco. Section 3.11 of the Software Engineering Code of Ethics and Professional Conduct states that software engineers must "Ensure adequate documentation, including significant problems discovered and solutions adopted, for any project on which they work," therefore it is a part of the platform's responsibility to ensure the site output reflects accurately of the actual listing information. With the growth of AI, platforms can embed faster regulatory checks to their platform that minimizes disruption to cross-checking legal compliances. Ultimately though, I personally believe that mislabeling of the rental unit is mostly the fault of rental unit owners.
2. It is very important to consider the protection of intellectual property and prevention of information skimming with the purpose of manipulating financial transactions. Take the case of eBay v. Bidder's Edge for instance, data scrapers can effectively manipulate the bidding process for items that harms the original intent for the site. I believe that effective enforcement of web scraping is reliant on the framework of the legal structure which should allow for ethical data scraping similar to the European Union directive, that the process should allow for the public good and can not allow third parties/startups to acquire financial gains. For instance, I personally believe any site involving financial transactions like Airbnb should allow for web scraping with an embedded contract that prohibits the collection of more sensitive data, the party web scraping off of these sites will have to accept the contract and can not use the information gathered for monetary gains. This ensures accountability and profitability for platforms alike.
3.
 1. Is the information obtainable through open source databases instead? I think in a lot of cases, public data is organized in tabular formats and can be accessed through data portals. This information is already collected and cleaned, mostly stripping privacy violation concerns, which means it has more accurate information. The limitation is that it is looking at a historical and long term range, so live information is not accessible.
 2. Are there mechanisms to ensure the final output/product does not diminish/harm other individuals? In the case of Clearview, if the company had just built a facial recognition software model for policing and scanning criminals, it would be less ethically concerning. However, when there are data breaches and/or perpetuate historically biased data for law enforcement, these factors make aggregated outputs harmful. There needs to be some sort of review to remove bias and provide additional protection and privacy after scraping the web.